3 Ethical Dilemmas, Responsibilities, and Conduct

Introduction

- An ethical dilemma, or value conflict can be defined as a problem in which value issues are a primary concern of the parties involved. A value is a quality, characteristic, or standard considered meritorious, important, or desirable. A value issue occurs when two, or more parties have conflicting values, or assign different levels of importance to values.
- Value issues common to ethical dilemmas include dishonesty, selfishness, and inefficiency.
- Each person places a different level of importance, or weight on a value such as honesty, or diligence, and it is this weight that influences that person's decisions. The set of weights on all relevant values can loosely be defined as the person's value system. In most cases, issues other than values involved are economic factors, or technical details.
- Value conflicts are often more difficult to resolve than technical, or economic based conflicts, because the latter types of conflict involve issues that are more easily measured and quantified. Cost-benefit analysis, for example, can assist in resolving economic differences. Theoretical considerations or empirical data can help resolve conflicts where technical issues are a central focus. Values are much less prone to quantitative measurement; therefore, any resolution must rely heavily on subjective weights assigned to the individual values by people with different value systems. As the importance of a value is often uncertain, conflicts, where values are involved, tend to be contentious.
- A person may find herself/himself in ethical dilemmas in personal and professional life due to conflict of interest or conflict between personal values and professional ethics; blurred or competing accountabilities, etc.
- A doctor, for example, working in a COVID care centre during a peak pandemic was caught in a dilemma where he had to choose between his integrity and his family's long-term interest. In other words, he is caught in a value conflict involving his values and professional commitments. Alternatively, these situations are also termed ethical dilemmas or crises of conscience.
- Moral temptations are situations where the individual is aware of the negative consequences of his actions but he or she is tempted to commit that action. If public engineers are offered a bribe, for example, they know very well that accepting such an offer is wrong, but the temptation to accept it is always there. In practice, every public engineer must be ethically aware to distinguish between moral temptation and ethical dilemma.

Issues and Resolving of Ethical Dilemmas in Decision-Making

- A professional has valuable responsibilities to society, profession, client, employer, and to himself or herself. While not all of these stakeholders are involved in every case, the professional needs to acknowledge all relevant stakeholders. Individuals who are naive from an ethical standpoint will not likely make good-value decisions because they do not properly recognise the ethical responsibilities that they have to take. The following are some of the factors that contribute to poor value decision-making and reflect ethical naivety.
  - A lack of understanding of the breadth of a problem, especially the value issues
  - A failure to obtain all relevant information and interpret the information gathered without bias, such as favouritism towards one's position
  - A failure to consider all possible alternative solutions, especially those that are counter to one's interests
  - Excessive influence by, or bias against, input from stakeholders. A lack of accurate communication among the parties involved
  - Different weights are applied to the values in conflict by the parties involved.

Different perceptions of the risk are associated with each alternative decision and each factor that influences the risk
    - A failure to take the issue seriously in its early stages
- These factors can complicate value decision-making, and failure to recognise one or more of them can lead to poor decisions. As people mature from an ethical standpoint, the likelihood of successfully solving an ethical dilemma increases.

Characteristics Needed for Resolving Ethical Dilemmas

- Acting in the interests of the public, sometimes means putting one's own interests second, which demands commitment, honesty, and the strength to overcome the lure of personal gain. Ethical difficulties cannot be overcome without a strong foundation of integrity.
- Individuals with high moral fibre are better able to recognise critical problems, set reasonable objectives, and evaluate conflicting values.
- Characteristics such as bravery, modesty, wisdom, caution, hope, and perseverance are essential for navigating difficult moral decisions.
- Even if they exist, moral norms cannot guarantee moral conduct. To act in accordance with moral principles, one must possess unquestionable honesty and moral rectitude.
- Being able to rely on one's own moral compass, strength, and capacity to accept responsibility for one's actions is crucial in navigating morally complex situations. Taking a justice-oriented stance, which emphasises the need to be fair and impartial while making judgements, is one way to navigate difficult ethical situations.
- When it comes to settling the many disputes that happen in everyday life, the guidance provided by laws, regulations, and ethical standards is, at best, inadequate.

Elements of Ethical Dilemmas

- Ethical dilemmas can occur in many forms, from plagiarism to bid-rigging, from data fabrication to identity theft, and from software piracy to resume padding. Each of these dilemmas has unique characteristics, but all conflicts have common characteristics.
- Ethical dilemmas involve value conflicts, which are often associated with other factors such as economics, public safety, or technical concerns. The relevant values need to be identified and their importance measured.
- Ethical dilemmas generally involve multiple value responsibilities. A professional has responsibilities towards the society, profession, client, and employer, as well as, to himself or herself. Conflicts often arise because an individual places excessive weight on one of these at the expense of another.
- The perpetrator may feel pressured to act unethically. The pressure can be internally or self-imposed or externally imposed by an employer or client. A person may feel the necessity to act unethically because of the need to compete with friends or appear more competent than he or she is. An employer can apply pressure to do something unethical to gain an economic advantage.
- The perpetrator rationalises, either as priority to justify committing the act, or after the act to avoid a feeling of guilt. Rationalisations are excuses people make to avoid acting according to their value system, or to avoid changing their value system.

Values Relevant to Unethical Conduct

Three primary values motivate a perpetrator of an unethical act as given below.

- Pleasure: in cases of immoral conduct, pleasure often refers to the ego boost and the favourable attention that the perpetrator receives as a result of the act. However, it could also refer to material benefits, including money.
- Security: a value refers to the enhanced position that the act enables the perpetrator to attain, such as elevated social stature or elevated position of leadership and power.
- Efficiency: this refers to the savings in time or resources that would have had to be expended if the selfless route been selected rather than the selfish route.

Situations That Lead to Unethical Conduct

- The individual making the decision has a value system, which encompasses the individual's knowledge of values, the weights applied to values, and the process followed in making a decision.
- Unfortunately, the individual has a selfish personality that places greater weight on personal values such as pleasure, or advancement.

Conflicts of Interest

- Those who are guilty of moral misconduct generally rationalise their actions to avoid both feeling guilty and changing their value system so that they will not repeat the misconduct.
- Even fundamentally honest people feel pressure from internal or external sources, which can cause them to place greater weight on the values associated with misconduct than on the values associated with doing the right thing.
- Professionalism may be severely compromised by conflicts of interest, as stated above. This is due to the fact that professionals get compensated for their knowledge and impartial judgement as they carry out their responsibilities, and conflicts of interest pose a danger to the faith that customers and employers have in those aspects of their work.
- Professionals behave in a way that benefits them rather than the interests of the profession. When the professionals' self-interests, outside of work, render the professionals' judgement less likely to help the client or customer than they are justified in anticipating, a conflict occurs.
- If acting on that interest will prevent the professionals from fulfilling one of their duties, then there is a conflict of interest. Consider the possibility that a member of a state's cabinet has a financial stake in one of the companies competing for a government contract. There is a conflict of interest if that minister is involved in deciding what company's contract to accept. The minister may be less likely to carry out his professional responsibilities impartially and faithfully, if he is motivated by his desire to maximise his financial stake in the organisation.

The three different kinds of conflicting interests are given below.

- Objective judgement is compromised when there are genuine conflicting interests.
- Conflicts of interest may emerge in a variety of contexts. Such a situation may arise if a physician's compensation was tied to the whole price of care rather than a fixed rate. There is little motivation to control prices, and the patient may even suspect that the doctor is deliberately overcharging them.
- There is the possibility of potential conflicts, which may quickly escalate into real ones. An engineer, for instance, may strike up a friendship with a firm vendor. However, the engineer's desire to keep the relationship alive may cloud his or her judgement in a way that undermines the best interests of both parties.

Organisational Disobedience

- A responsible engineer might be engaged in three types of organisational disobedience, which are listed in the following points. Engineers who are trying to do their best as both dedicated workers and conscientious members of society may run into some snags. It is termed 'organisational disobedience' when the engineers have to go against the wishes of their superiors to do their job.
- Acting in a way that goes against what management considers to be in the best interest of the department.
- Intentional disobedience, in which one publicly and vociferously opposes an official's or group's policy or procedure.
- Refusing to participate in an assignment for moral or professional reasons.

Confidentiality and Proprietary Information

- Engineers, like anybody else, are obligated to protect the privacy of their employers' and clients' personal information. The need for confidentiality is emphasised in many engineering codes of ethics and is seen as a defining feature of the profession. Both the medical field, where patient confidentiality is

of the utmost importance, and the legal field, where attorney-client confidentiality is a well-established concept, adhere to this notion.

- For how long should the information be kept secret? Test findings and data, information on new, unannounced items, product designs, formulations, etc., are all apparent examples. All workers are usually required to sign non-disclosure agreements when they join a company. Information shared among employees of the same firm is often protected as a trade secret. Engineers who work for a customer often must sign a confidentiality clause to protect the client's confidential information.
- When asked, 'Why is it necessary to keep certain corporate information secret?' people often respond, 'To protect the firm's competitive advantage.' The majority of data pertaining to goods and their suppliers has an immediate impact on a business's competitive position. A rival might utilise this intelligence to go ahead or play catch up. Consequently, it is in the best interest of the firm (and employees) if such information is kept secret.
- However, there are a number of ambiguities that need to be thought out, as is the case with many of the issues covered in the framework of engineering ethics. For example, when an engineer quits a firm, how long their work remains private is a typical concern. An engineer's knowledge of what materials to use and which components to avoid is invaluable, even if they do not spill the beans to their new employer. Their old company may see this data as confidential. A legal need to maintain confidentiality exists even after an engineer has switched jobs within the same technological field. It is not always easy to put theory into practise.

Right to Information Act, 2005

- The Right To Information (RTI) act ensures that any Indian person may request information from any government agency, increasing the openness and accountability of the state and its agencies.
- A public authority must respond to a request for information from a person within 30 days under the requirements of the act.
- In order to coordinate RTI efforts throughout the federal government, the Department of Personnel and Training has been designated as the nodal department. All Indian states and territories are included.
- To ensure that public authorities carry out their responsibilities under the act, information commissions are required to make orders and directives to them. To reduce the burden on citizens to formally request information, the act mandates that all public authorities computerise their records for widespread circulation and proactively publish certain categories of information.
- Implementation of the legislation is dependent on two key actors: public information officers (PIOs) and appellate authorities (AAs). The PIO acts as the public's first point of contact with the government and must respond to requests for information submitted under the RTI act. In cases where the PIO has been tardy in providing information, or when the applicant has been dissatisfied with the information supplied, the appellate authority will intervene.
- The appellate authority has the power to hold hearings on the case and issue binding orders. The applicant has the right to request a new appeal hearing with the information commission, if they are still unhappy. The CIC and SIC do not report to anybody higher up in the government. Departments at the federal level are handled by CIC, while those at the state level are handled by SIC. The CIC cannot hear complaints or appeals from anyone dissatisfied with a state information commission's decision.

Central Vigilance Commission and Central Bureau of Investigation

- In 1964, the Santhanam Committee recommended the creation of the Central Vigilance Commission (CVC), to advise the government on issues related to the protection of public trust in government.

- The Supreme Court of India ruled in the 1997 case of Vineet Narain versus Union of India, mandating that the government establish CVC as a statutory body to ensure its autonomy, transparency, and accountability and shield it from political interference. As a result, in 2003, Congress passed the CVC act. All federal workers and those working for central government agencies, nationalised banks, and independent agencies were under the CVC's purview.
- The Central Bureau of Investigation (CBI), another connected organisation, is put within the CVC's purview of authority. Cases may be sent to the CBI or the relevant department's Central Vigilance Officer (CVO) at the discretion of the CVC. Disciplinary measures against a government employee are ultimately up to the relevant department, regardless of whether the CVC or CVO has recommended it. Whistle-blower allegations may be investigated by the CVC.

Whistle Blowing

- Whistle blowing is the practise of disclosing misconduct in an organisation, whether public or private. A whistle-blower is an employee who goes public or to higher-ups in a company with information about misconduct. This proposes two aspects of whistle blowing. Disclosure of sensitive information outside of proper channels and disclosure of information that the company does not want to be made public or to authority.
- Any government employee or member of the public (including non-governmental organisations) can report suspected corruption, abuse of authority, or criminal activity by a government official to the Central Vigilance Commission. The Whistle blowers Protection Act of 2014 includes provisions to keep the identities of those who report wrongdoing confidential.
- A new bill, the Whistle Blowers Protection (Amendment) Bill 2015, was submitted to Parliament to revise the existing legislation of 2014 to remove from its scope anything relating to national security, sovereignty, integrity, security, or economic interests of the state.
- Engineers may feel that just opting out of an employer's disagreeable conduct is not enough of a response in some cases. Instead, there must be some kind of public outcry or disclosure of wrongdoing.
- Several complex problems are involved in the act of 'blowing the whistle'. When does it make moral sense to blow the whistle? How often does it become ethically required?

Types of Whistle Blowing

- Internal whistle blowing is when whistle-blowers raise an alert about misconduct in their organisation, and the information remains within the organisation. Whistle blowers may go around their direct superiors, if those superiors are complicit in the crime.
- When whistle-blowers travel outside the company to report wrongdoing, they are engaging in what is known as external whistle blowing.
- Disclosure of a whistle-blower's identity is an explicit act of whistle blowing. When whistle-blowers act anonymously, they do so to protect their privacy.

Gifts and Bribes

- Bribery is usually done behind the scenes; however, this is not always the case. For the sake of winning or retaining business, bribery is defined as the offer, receipt, or acceptance of anything of value in addition to the terms of a contract.
- Kickbacks are defined as payments paid by contractors to government officials in return for awarding contracts.
- Gifts to government officials and business partners are a common practise for many corporations. Of course, some of these presents are designed to influence an individual's actions in a way that is not in the public interest, while others create conflicting interests that do not technically constitute bribery. So, to what extent are they dissimilar? These differences could be crystal evident in one's head, but in reality, they are not that cut and dry. It is very

uncommon for departments to create complex rules for their employees as there are so many grey areas and so much variation depending on the circumstances. The difference between bribe and gratuity is that the former is of a size that may compromise fairness in a competitive setting, while the latter is not. While certain forms of gratuity are essential for doing business, others have the potential to influence decisions in a corrupt way.

- A person who bribes a public official may face up to six years in jail on a charge of aiding and abetting bribery. Typically, a gift policy may outline the circumstances under which gift giving and receiving are sanctioned, as well as set restrictions on the types and amounts of presents that are acceptable. They go through the paperwork involved in giving and receiving presents, as well as any other relevant procedures.
- It is important to note that neither the Companies Act of 2013 nor the listing agreement with the Securities and Exchange Board of India (SEBI) include specific regulations or legislation regarding the giving or receiving of gifts. However, under both statutes, businesses must have sufficient internal controls to prevent and investigate ethical violations. Inappropriate entertainment and gifts are addressed 'a system for anonymously reporting violations of policy must be in place.' If there is one legislation that directly affects gifts and entertainment, it is the Prevention of Corruption Act of 1988. In accordance with guidelines for proper behaviour in public office, the recipient of a gift must report it.
- Legal experts have noted that PCA provides a broad concept of bribery that is not tied to monetary amounts. 'Any monetary or in-kind present given or promised with the expectation of future commercial favours is illegal under the act.'

Plagiarism

- Plagiarism is defined in multiple ways in higher education institutions and universities. A few examples are given below.
    - Stanford sees plagiarism as the "use, without giving reasonable and appropriate credit to or acknowledging the author or source, of another person's original work, whether such work is made up of code, formulas, ideas, language, research, strategies, writing, or other forms."
    - Yale views plagiarism as the "use of another's work, words, or ideas without attribution" which includes "using a source's language without quoting, using information from a source without attribution, and paraphrasing a source in a form that stays too close to the original."
    - Princeton perceives plagiarism as the 'deliberate' use of "someone else's language, ideas, or another original (not common knowledge) material without acknowledging its source."
    - Oxford characterises plagiarism as the use of "a writer's ideas or phraseology without giving due credit."
- Plagiarism can occur in many forms besides writing, art, music, computer code, mathematics, and scientific work can also be plagiarised.
- A conscientious writer always distinguishes clearly between what has been learned from others and what he or she is personally contributing to the reader's understanding. To avoid plagiarism, it is important to understand how to attribute words and ideas one has used with regard to their sources.

Intellectual Property (IP)

- Copyright, patents, trademarks, and trade secret protection are all examples of intellectual property rights. Numerous intellectual property law ideas have developed since the early modern era.
- The term 'intellectual property' (IP) is a legal term for the exclusive rights that may be claimed over works of the mind. Certain exclusive rights are provided to owners of certain intangible assets under intellectual property law, including but not limited to musical, literary, and creative works, words,

phrases, symbols, designs, discoveries, and inventions.

- Except for trademarks, the stated goal of most intellectual property laws is to: promote progress by exchanging restricted unique rights for disclosure of innovations and creative content, so that the general public and the patentee/copyright owner both win, and so that inventors and authors have an incentive to invent and disclose their work.
- Absolute protection has been cited as the stated goal of intellectual property lawmakers and their supporters. The rationale behind this position is that innovators need a guaranteed legal route to profit from their creations before they are willing to put in the time and effort.

Crime and Punishment

- The Indian anti-bribery law is primarily codified in the Prevention of Corruption Act, 1988 (PCA). Officials who accept bribes, or engage in other forms of corruption while performing their jobs are breaking the law and are subject to criminal penalties.
- The Public Service Act defines a public servant as "any individual hired to execute a public obligation, including employees of government instrumentalities and local authorities, statutory companies and enterprises owned or controlled by the government, judges, and any other person".
- There are three primary categories of criminal conduct that are punishable by PCA.

Misconduct by Officials

- Misappropriating property or misusing one's position in the public service are examples of criminal misbehaviour. This kind of crime carries a maximum sentence of seven years in jail (with a mandatory minimum of one year) and a monetary punishment. This type of misconduct is known as criminal misconduct.
- Taking anything of value from anybody involved in a transaction or official activity to be performed by a public servant for insufficient, or no recompense (whether in or outside India) is a serious offence.
- The maximum sentence for the above crimes is five years in jail, with a mandatory minimum of six months.

Violators Other than Government Employees

Taking advantage of one's connections with government officials by accepting gifts in exchange for favours. The maximum sentence for each of these crimes is five years in jail (with a mandatory minimum of six months), and a fine is also possible.

Abetment of Offenses by Public Servants

Those who bribe public officials may be held criminally liable for 'abetting' those officials' criminal actions. Officials who cover up their wrongdoing face jail time of six months to five years and a fine.

Plan Stamping

Many forms of clean-up efforts also need engineering reviews and clearances. For the untrained eye, at least, this task could look simple. Most people will not understand the in-depth reasoning behind a sealed plan or design, making it seem like the engineer is just getting compensated for 'plan stamping.' It is common practise for clients to seek an engineer's stamp of approval before proceeding with construction or design. Sometimes, dishonest engineers would use stamping in their designs without first doing enough research, or supervising the process. When the charge is high enough, they will approve flawed designs or take money without fully knowing what they have accepted. The integrity of the whole technical community is compromised by this behaviour.

Double Dipping

- It means to get two salaries or two sets of perks from the same company or organisation. Most often, this occurs when a single engineer or many members of the same business hold governmental and non-governmental positions simultaneously. In one scenario, an engineer may work for both the builder, and the approving board, or commission.
- Conversely, a company that specialises in engineering would want to get a contract with the state. Assuming that one of the

proprietors of the company also sits on the board of directors of the agency in question, a conflict of interest seems to exist. This is very unethical behaviour.

Moonlighting

- Working for a second job is not against the law. Many people who work two jobs do so because they need the money desperately.
- For those who are already gainfully employed, 'moonlighting' means taking up additional work on the side. It may take various forms, but it is likely to arise if an employee has failed to disclose outside work, or if doing so creates a conflict of interest.
- However, if a company has rules forbidding freelancing or conflicts of interest, an employee working for a competitor might violate the contract. If the employee's performance at their primary job is negatively impacted by the extra work, disciplinary action may be warranted even in the absence of such a policy.

Embezzlement

Embezzlement involves misappropriating money or property for one's use that has been entrusted on the person by someone else (for example, employees who use their legitimate access to the company's computerised payroll system to change the data so that they are paid extra, or who moves funds out of company bank accounts into their account).

Responsibility

- It is a moral principle that says everyone should take responsibility for their activities, regardless of whether those actions break the law.
- It lasts longer than accountability because it is based on moral reasoning; a self-responsible individual will always do the correct thing, even if no one else is there to see it. By taking responsibility for one's actions and judgements, one takes ownership of the results. On the contrary, accountability does not always come with consequences. Further, accountability necessitates that one takes responsibility for one's actions. On the other hand, being reliable means always finishing what has been started.
- It is possible to differentiate between several forms of accountability. Passive accountability is sometimes contrasted with active responsibility. Being proactive means taking accountability for actions before they occur. The responsibility to look after something, or someone is what this phrase means. If anything undesirable happens, then you may take responsibility for it passively.
- A person's sense of responsibility, including both active and passive, is generally proportional to the kind of function they play in a given context. There are duties associated with every position. We shall refer to the duty that is dependent on a role you perform in a given situation as role responsibility.
- An individual's obligations change depending on the function he or she plays in life. In certain cases, the duties associated with one function will be at odds with those of another.
- To the extent that it does not cross the line into immorality, a professional engineer has the duty that comes with the job. There is both a passive and active aspect to professional responsibility.
- Though, one's function in a given scenario will determine the nature of the duties that fall on them, moral accountability transcends such boundaries. Instead, it is grounded in the responsibilities, norms, and expectations that accrue from moral reflection. The scope of one's moral obligations is not limited by one's assigned function. The professional responsibilities of workers are of primary concern in this context.

Passive Responsibility

- In particular, the individual is responsible for providing an explanation for his or her behaviour to those who have an authority to ask for one.
- To be held passively accountable, one should be able to explain one's actions and judgements to an impartial third party. In addition to accountability, blameworthiness is frequently a part of passive responsibility. Someone is blameworthy, if it is fair to hold them

accountable for the consequences of their conduct. Sometimes, one cannot be held responsible for one's own acts or their results.

- There are often four prerequisites: wrongdoing; causal contribution; foreseeability; and freedom. The degree to which these elements are met establishes your level of irresponsibility.

Foreseeability

To be held accountable, one must have had the wherewithal to foresee the outcomes of one's acts. When someone breaks a rule, it causes problems. People do anticipate, however, that individuals will make every effort to familiarise themselves with those outcomes.

Acts of Wrongdoing

Acts of wrongdoing: these standards might be mandated by legislation or just accepted practise within an institution.

Freedom of Action

Finally, the accountable party must have acted voluntarily and not been coerced into doing so. If, for example, people are forced to make a choice, they are either not accountable for it or just partially responsible for it.

Causal Role

- There are two considerations for deciding whether an individual should be credited with having a hand in producing a specific outcome.
- It is not only what one does, but what one does not do that might have an impact on the outcome.
- In most cases, the presence of a causative factor alone is not enough to ensure that the outcome in question will occur. Multiple contributors to the chain of reasoning are usually required for the outcome to materialise.

Active Responsibility

- If nothing bad has happened or a positive outcome is possible, then responsibility also comes into play beforehand. This is what it meant by 'active responsibility.' If someone is accountable for an outcome, then that person should take steps to minimise any negative effects and maximise any favourable ones. Involved responsibility is not based on assigning blame, but rather on developing a specific positive mindset, or character attribute for handling adversity. Philosophers use the term 'virtue' to refer to admirable qualities of character. In addition to avoiding the bad outcomes that might result from the use of technology, active responsibility also entails capitalising on its potential benefits.
- Characteristics of active responsibility include being aware of when one is about to break the rules, thinking about what might happen if they do, having the freedom to choose one's own moral stance, acting in accordance with a consistent and observable code, and taking one's responsibilities in a given role seriously.

Act of Irresponsibility Is a Profession

Failure to Question Authority

Engineers are encouraged to make decisions based on their own knowledge and experience, rather than following a set of predetermined rules laid forth by the engineering community. The term 'professional autonomy' might be used to describe this situation. Engineers, according to professional ethics guidelines, must be loyal to their employers. The vast majority of engineers do not hold managerial positions, and as such, they are expected to show respect for those in higher positions.

Self-Interest

Self-interest may cloud people's judgement and prevent them from meeting their professional obligations. In the pursuit of self-interest, one might be tempted to disregard the needs of others or even to go against the norms of one's profession.

Ignorance

- Sometimes people do not see things because they are purposefully ignoring them rather than because they do not care.
- Ignorance is a clear impediment to responsible behaviour. If a designer fails to account for

any safety concerns, for instance, engineers will be unable to address the issue.

Fear

It might be challenging to behave appropriately when people are afraid of things. The fear of admitting one's errors, losing employment, or some type of penalty, or other undesirable repercussions might deter themfrom exploiting people for personal benefit.

Group Thinking

Individuals prefer to work and discuss in groups within the departmental contexts in which they are employed. The implication is that workers are less likely to make decisions on their own and more likely to contribute to making decisions as a team. Even while this might lead to improved decision-making, it often leads to less critical thinking and more consensus among groups.

Importance of Professional Responsibilities

- Professional responsibility is an umbrella virtue that encompasses a wide variety of more specific virtues that acquire importance in particular situations. Many of these virtues can be grouped into four categories.
- 'Self-direction virtues' are those virtues that are fundamental to exercising moral autonomy and responsibility. Some of them centre on understanding and cognition, for example, self-understanding. Humility, and, above all, good moral judgement (prudence). Other self-direction virtues centre on commitment and on putting understanding into action; for example, courage, self-discipline, perseverance, fidelity to commitments, self-respect, and integrity.
- Public spirited virtues: those that exhibit public spirited virtue are dedicated to serving the interests of their clientele and the larger community. Beneficence or the elimination of damage to others via the advancement of public health and welfare is also required by engineering rules of professional behaviour. Engineers who voluntarily provide their time, skill, and resources to their professional organisations and local communities demonstrate generosity, which is defined as going above and beyond what is expected to aid others.
- Professional virtues: expertise in one's field, in this case, the technical abilities that define sound engineering practise, is shown by the qualities one calls 'proficiency.' Competence, the quality of being well prepared for one's endeavours, is the most fundamental proficiency virtue. Diligence, characterised by vigilance in the face of dangers and preciseness in completing duties, is also crucial.
- Teamwork qualities: those that help professionals function well in collaborative settings. Cordiality, cooperation, the capacity for effective communication, and deference to legitimate authority are all examples of these. In departments organised around the responsible use of power, leadership skills, including the capacity to inspire subordinates to accomplish important objectives, are crucial.

Influence and Power

- Job descriptions and coordination plans alone are insufficient to get things done. Managerial success depends on the manager's capacity to persuade others inside the company. One's capacity to influence others is a product of their unique skill. Personal influence is the key to success in every company. Managers need to motivate staff in some way, and that way is via influence.
- There are many different kinds of authority, including the authority to reward, coerce, inform, allocate, advise, recommend, enforce, and enforce legitimacy.
- The capacity to penalise those who do not comply with the manager's intended conduct is the source of the manager's coercive power. Coercion may take many forms, including but not limited to chastisement, criticism, and low evaluations of performance.
- Managers can exert influence on their subordinates by offering or withholding incentives like money and praise.
- Expertise is the most important factor in determining a person's expert power.
- The control of management over a worker, or a professor over a student, for example,

is legitimate as it is based on the conviction that the holder of such a position does have the right to exert influence over others.

- Attractiveness, popularity, charm, and status are just a few of the many factors that drive people to one another. Referent power may arise when someone is liked or respected by others around them, making those people more inclined to take their cues and show devotion.
- Controlling who has access to crucial information about operations and future goals is also a source of power. Having control over the distribution and resources that are essential to achieving goals is also a source of authority for a manager.
- Successful managers know how to share authority in a way that is moral, practical, and productive. People may be persuaded to act in ways they normally would not if you have enough power over them. Misuse of power occurs when someone in a position of authority persuades others to do actions that have nothing to do with furthering the organisation's stated mission. When authority is abused, moral concerns arise. In order to behave ethically, those in positions of authority must weigh the consequences of their decisions for themselves, their subordinates, and the organisation as a whole.
- Control is not synonymous with efficient use of power. Those who hold power for personal gain rather than the good of the organisation risk undermining its mission. All members of an organisation can advance or thwart its aims depending on the choices they make, delegate, postpone, reject, or support.
- Information, responsibility, authority, resources, access, justification, and emotional support are all ways in which people might exchange power with one another. In certain organisations, workers may want a reorganisation, or transfer of power inside the formal hierarchy. A key tool for successful managers is the capacity to persuade other team members.

Authority

- For the purposes of this article, 'authority' will be taken to mean the legal right to wield influence or the legal power to make choices, carry out activities, and lead others.
- Organisational structures often have a formalised hierarchy that represents the formalised relationships of power between individuals and their tasks. Line, staff, and functional authority are all present in this organisational set-up.
- In a hierarchical organisation, the person at the top of the command structure has the power to make decisions, give orders, and expect subordinates to follow them.
- Managers with functional authority can make decisions on procedures, practises, and policies that influence employees in different functional areas, regardless of their position in the organisational chart.
- Staff members who wield power are backed by their superior expertise and the respect of competent supervisors. The authority of staff members is advising authority, expressed via the provision of advice and recommendations.

Delegation

- Managers may delegate some of their duties to subordinates in order to more effectively meet organisational objectives. When duties and responsibilities are delegated, they go from one position within an organisation to another.
- For various reasons, some workers are resistant to being delegated to work. Some individuals are afraid to take the initiative and be responsible because of the inherent danger. When uncertainty leads to negative feedback, people try to play it safe. People who believe they have too much work to do tend to avoid taking on more responsibilities. Some individuals lack confidence in themselves and their talents, making them reluctant to take on new challenges.
- There are several rules to follow if you want to assign tasks effectively: think about the person's ability to manage the activity's challenges and whether they are up to the task at hand. Be specific about the goals you want to achieve. Ask questions, take the time to explain the task's significance, find out whether the individual

has enough time, money, information, or tools to complete the work by the deadline, schedule progress reviews, and accept less than ideal outcomes. Delegation of responsibility needs to be based on the outcomes that are intended. Authority levels are often simpler to assign when there is a clearer understanding of what has to be accomplished.

- To create a strong team, one must play to each member's talents. When people are first encouraged to think broadly and then given difficult tasks, they flourish. Possessing more power might be difficult. However, this may be quite discouraging to individuals, leading them to shun oncoming obligations. As long as it fosters learning and development, delegation is a great method for advancing an employee's career. As a bonus, delegation may help cover up a manager's shortcomings. The goal of delegation is to provide enough of a challenge to keep people interested without becoming overwhelming. Managers that are willing to delegate responsibility to others are more likely to have a positive impact on employees' motivation to achieve the company's objectives.

Professional Rights

Employees as professionals also have special rights arising from their professional roles as given below.

- The basic right of professional conscience (right to exercise professional judgement in pursuing professional obligations)
- Right to refuse to engage in unethical activity
- Right to express one's professional judgement, including the right to dissent
- Right to warn the public of the danger
- Right to fair recognition and remuneration for professional services

Employee Rights

- The term 'employee rights' refers to any legal protections enjoyed by workers. There are two main types of rights: those based on contracts and those based on common law.
- Organisational policies and/or contracts are the only sources of enforceable contractual rights, for instance, the promise of a set annual wage.
- Non-contractual rights exist even if they are not formally recognised in a contract or company policy as given below.
    - Right to choose outside activities
    - Right to privacy and employer confidentiality
    - Right to due process from the employer
    - Right to non-discrimination and absence of sexual harassment at the workplace
    - Ethical theories provide a justification for professional and employee rights
- To follow one's moral compass in the workplace is consistent with the basic human freedom to pursue one's legitimate interests.
- Humanity's basic need to avoid causing damage to others is at the heart of a responsibility theory.
- Utilitarians would say that letting workers fulfill their responsibilities is for the greater benefit.